

		The Court now vacates all future court dates, including the CMC scheduled for September 10, 2026. A Review Hearing re: Arbitration is scheduled for July 22, 2027, at 9:30 a.m. in Department C12. Joint Status Report to be filed by July 1, 2027. Moving party to give notice of this ruling.
4.	Allstate Insurance Company vs. East Nine Condominium Association 25-01479772	Motion to Compel Production CONTINUED
5.	Padilla Hernandez vs. Pacific Specialty Insurance Company 26-01537689	Motion to Compel Production CONTINUED
6.	Gombu, LLC vs. Do Builder and Design, Inc. 23-01367281	1. Motion to Compel Arbitration 2. Motion to Compel Further Responses to Special Interrogatories Motion to Compel Arbitration Plaintiff Gombu, LLC's Motion to Compel Arbitration is CONTINUED to November 13, 2026, at 9:30 a.m. in Department C12. Plaintiff's proof of service does not state the electronic service address of the declarant, as required by Code Civ. Proc. §1013b, subd. (b)(1). In light of the fact that no opposition to this motion has been filed, the Court is concerned that Defendants were not given appropriate notice of the hearing of this motion. Within 7 days of this ruling, Plaintiff shall re-serve the Motion to all Parties and file a valid proof of service of the same that complies with the requirements of Code Civ. Proc. §1013b. Defendants' deadline to file an opposition to the motion shall be calculated based upon the continued hearing date.

		Plaintiff Gombu, LLC’s Motion to Compel Answers to Interrogatories Plaintiff Gombu, LLC’s Motion to Compel Answers to Interrogatories is DENIED as MOOT. Defendant Do Builder and Design, Inc. has established that it has, subsequent to the filing of this motion, served responses to the subject discovery requests. The motion, however, is not moot as to the issue of monetary sanctions. (See <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 409 [court’s discretion where responses served after motion filed].) Defendant Do Builder and Design, Inc. shall pay monetary sanctions in the amount of \$510 to Plaintiff within 60 days of this ruling. Plaintiff shall provide notice of both of these rulings.
7.	Radner vs. FCA US, LLC. 25-01460933	Motion to Compel Production Plaintiff Marc Radner’s motion to compel compliance with California Code of Civil Procedure § 871.26 by producing all documents required under subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13) is denied as moot. Radner’s complaint no longer contains violation of express warranty claims. The third cause of action for violation of Civil Code section 1793.2(a)(3) does not trigger the initial disclosure requirements of Code of Civil Procedure section 871.26. Section 1793.2(a)(3) imposes a statutory duty on manufacturers to make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. This is a separate statutory obligation that exists independently of whether the manufacturer failed to repair the vehicle to conform to the applicable express warranties after a reasonable number of attempts. Section 871.26 only applies to actions seeking restitution or replacement pursuant to Section 871.20, and Section 871.20(a) explicitly limits the chapter’s application to actions “seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code” where “the request for restitution or replacement is based on noncompliance with the applicable express warranty.” A standalone claim under Section 1793.2(a)(3) for failure to provide service literature and parts to repair facilities does not seek restitution